



AGENDA

LCRA REVITALIZATION CORPORATION II ANNUAL BOARD MEETING 1520 MARKET STREET – SUITE 2000 AND VIA ZOOM Tuesday, May 26, 2026 – 3:00 p.m.

This meeting will be conducted electronically.

In order to ensure all Directors and the public are able to connect successfully, we recommend that you call or join via Zoom (for video) starting at 2:45pm to allow time to troubleshoot any connection issues. The host will open the phone lines and initiate the Zoom meeting at that time. Should you have a problem accessing the meeting, please call (314) 657-3749 for assistance.

The public will be able to access the meeting in two ways:

1. Please click the link below to join the webinar:

<https://us02web.zoom.us/j/83593997289?pwd=ZmF5bXRUOVNQRFZS2ZpYlo2VjJ6UT09>

Passcode: 878470

Or One tap mobile :

+13126266799,,83593997289# US (Chicago) +16469313860,,83593997289# US

2. Or Telephone:

Dial(for higher quality, dial a number based on your current location):

US: +1 312 626 6799 or +1 646 931 3860 or +1 929 205 6099 or +1 301 715 8592 or +1 253 215 8782
or +1 346 248 7799

Webinar ID: 835 9399 7289

People who need accommodations relating to accessibility should contact Myisa Sykes at sykesm@stlouis-mo.gov or by phone at (314) 657-3749 or (314) 589-6000 (TTY). Prior notice of two business days is recommended for accommodation requests.

1. **CALL TO ORDER AND ROLL CALL**
2. **APPROVAL OF MINUTES** – August 26, 2025 Board Meeting
ELECTION OF OFFICERS
3. **RESOLUTION No. 26-LCRARCHII-24** – RESOLUTION APPOINTING STEPHEN WESTBROOKS AS EXECUTIVE DIRECTOR AND SIGNATORY FOR LCRA REVITALIZATION CORPORATION II

The official Agenda is being posted on the bulletin board in the first-floor elevator lobby of 1520 Market Street on or before May 22, 2026 prior to 3:00 P.M., and items may be withdrawn or modified during the public meeting at the discretion of the Board.

4. **RESOLUTION No. 26-LCRARCII-25** – AUTHORIZING AND APPROVING THE ELECTION OF OFFICERS OF LCRA REVITALIZATION CORPORATION II
5. **RESOLUTION No. 26-LCRARCII-26** – RESOLUTION AUTHORIZING AND APPROVING AN ADMINISTRATION AGREEMENT BY AND BETWEEN ST. LOUIS DEVELOPMENT CORPORATION AND LCRA REVITALIZATION CORPORATION II
6. **EXECUTIVE SESSION** – Roll call vote to hold a closed session pursuant to the following:
 - (A) Proceedings involving legal actions, causes of action or litigation, or confidential or privileged communications with attorneys or auditors, as provided by Section 610.021(1) RSMo. and/or Section 610.021(17) RSMo.;
 - (B) Proceedings to discuss matters involving leasing, purchase or sale of real estate, as provided by Section 610.021(2) RSMo.; and/or
 - (C) Proceedings regarding sealed bids and proposals and related documents, or documents related to a negotiated contract, as provided by Section 610.021(12) RSMo.
7. **OPEN AGENDA**
8. **ADJOURNMENT**

The official Agenda is being posted on the bulletin board in the first-floor elevator lobby of 1520 Market Street on or before May 22, 2026 prior to 3:00 P.M., and items may be withdrawn or modified during the public meeting at the discretion of the Board.

MINUTES

LCRA REVITALIZATION CORPORATION II

ANNUAL MEETING – REGULAR SESSION VIA ZOOM AND VIA PHONE

Tuesday, August 26, 2025 – 3:00 p.m.

BOARD MEMBERS PRESENT: Matt McBride, Chair
Sean Spencer
Lindsey Evans

BOARD MEMBERS ABSENT: Lori Koenig
Kennard Jones

STAFF PRESENT: Otis Williams, Linda Criss, Zachary Wilson, Rob Orr, Andrew Knop, Madeleine Swannstrom, Paul Weatherford, Charlie Hahn, Dale Ruthsatz, Marla Roach, Salise Cobb, Deion Broxton, Shelton Anderson, Henry Shannon, Steve Davis, Sara Wessels

COUNSEL PRESENT: Olivia Findley

GUESTS PRESENT: Gerry Connolly

CALL TO ORDER

A quorum being present, Chair McBride called the meeting to order at 4:35p.m. and asked for a roll call.

APPROVAL OF MINUTES

Chair McBride called for a motion to approve the Minutes of the August 27, 2024 meeting. The motion to approve the Minutes was made by Director Spencer and seconded by Director Evans, and the motion passed by roll call vote with three Directors (McBride, Spencer, Evans) voting Aye.

RESOLUTION NO. 25-LCRARCII-22 – RESOLUTION AUTHORIZING AND APPROVING THE ELECTION OF OFFICERS OF LCRA REVITALIZATION CORPORATION II

Ms. Findley presented the Resolution to the Board and reviewed the present slate of officers. Following discussion, Director Spencer moved to appoint Matthew McBride as Chair, Lori Koenig as Vice Chair, Sean Spencer as Treasurer, Kennard Jones as Secretary, Charlie Hahn as Assistant Treasurer, and Zachary Wilson and Linda Criss as Assistant Secretaries. Director Evans seconded the motion. The motion passed with all three (3) Directors present (McBride, Spencer, Evans) voting Aye.

RESOLUTION NO. 25-LCRARCII-23 – RESOLUTION APPOINTING OTIS WILLIAMS AS EXECUTIVE DIRECTOR AND SIGNATORY FOR LCRA REVITALIZATION CORPORATION II

Ms. Findley presented the Resolution to the Board. Following discussion, Director Spencer moved to approve the resolution with a request for previous role and seconded by Director Evans. With there being no objection, the motion passed with three (3) Directors (Spencer, Evans, McBride) voting Aye.

OPEN AGENDA

No items for open agenda.

ADJOURNMENT

With no further business to discuss, Director Spencer moved to adjourn, Director Evans seconded the motion, and the Chair declared the meeting adjourned at 4:39 p.m.

Matt McBride, Chair

Sean Spencer, Secretary

**RESOLUTION NO. 26-LCRARCHII-24
PRESENTED TO THE BOARD MAY 26, 2026**

TO: LCRA REVITALIZATION CORPORATION II BOARD OF DIRECTORS

FROM: DAVID MEYER, ASSOCIATE CITY COUNSELOR

RE: RESOLUTION APPOINTING STEPHEN WESTBROOKS AS EXECUTIVE DIRECTOR AND
SIGNATORY FOR LCRA REVITALIZATION CORPORATION II

EXECUTIVE SUMMARY:

This Resolution authorizes the appointment of Stephen Westbrooks as Executive Director of the LCRA Revitalization Corporation II and designates him as the duly authorized signatory for all LCRA Revitalization Corporation II documents.

BACKGROUND:

Stephen Westbrooks has been recommended by the Mayor's office and appointed by the St. Louis Development Corporation II Board of Directors to succeed Otis Williams as President and Executive Director of SLDC. Mr. Westbrooks has been appointed as Executive Director of the Land Clearance for Redevelopment Authority of the City of St. Louis (LCRA) as well. Consistent with LCRA's bylaws, this Resolution approves his appointment as Executive Director of LCRA and its duly authorized signatory, effective March 30, 2026.

Article VII, Section 1 of LCRA Revitalization Corporation II's Bylaws provides that the LCRA Revitalization Corporation II shall have as its Executive Director, the Executive Director of its member (i.e., the LCRA).

REQUESTED ACTION:

Approval of this Resolution.

NOW, THEREFORE, be it resolved by the Board of Directors of LCRA Revitalization Corporation II, that:

1. The Board of Directors of LCRA Revitalization Corporation II hereby appoints Stephen Westbrooks as Executive Director of LCRA Revitalization Corporation II and designates him, or his designee in his absence, as the duly authorized signatory for all LCRA Revitalization Corporation II documents.
2. The Executive Director or his/her designee, and the appropriate officers, agents and employees of LCRA Revitalization Corporation II are hereby authorized to take all actions necessary to effectuate the intent of this Resolution.
3. This Resolution shall take effect and be in full force immediately after its passage and approval by the LCRA Revitalization Corporation II Board of Directors.

ADOPTED this 26th day of May 2026.

(SEAL)

LCRA REVITALIZATION CORPORATION II

By: _____

Title: Executive Director

ATTEST:

Assistant Secretary

**RESOLUTION No. 26-LCRARCII-25
PRESENTED TO THE BOARD – MAY 26, 2026**

TO: LCRA REVITALIZATION CORPORATION II BOARD OF DIRECTORS

FROM: DAVID MEYER

RE: RESOLUTION AUTHORIZING AND APPROVING THE ELECTION OF OFFICERS OF LCRA REVITALIZATION CORPORATION II

EXECUTIVE SUMMARY:

Pursuant to the By-Laws of the LCRA Revitalization Corporation II, the Board shall elect, by a simple majority vote, a Chair, Vice Chair, Secretary and Treasurer, at the Annual Meeting of the Board of Directors, which shall be held contemporaneous with the regular meeting in March of each year. As the August meeting is the first meeting of the present year, that meeting shall serve as the Annual Meeting. By custom, any Assistant Treasurers or Assistant Secretaries are also appointed by the Directors at the Annual Meeting. Officers shall serve pursuant to Article IV of the LCRA Revitalization Corporation II By-Laws.

REQUESTED ACTION:

Approval of this Resolution and election of officers for 2026-27.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF DIRECTORS OF LCRA REVITALIZATION CORPORATION II, THAT:

1. The following persons are elected to the following officer positions, to assume said office immediately and to serve until such time as their successors are appointed:

Matthew McBride, Chair
Lori Koenig, Vice Chair
Kennard Jones, Treasurer
Sean Spencer, Secretary
Linda Criss, Assistant Secretary
Zachary Wilson, Assistant Secretary
Charlie Hahn, Assistant Treasurer

2. The Board of Directors of LCRA Revitalization Corporation II hereby approves this Resolution electing officers of the Corporation II.

3. The Executive Director, and/or his designee, and the appropriate officers, agents, and employees of the Corporation II, are hereby authorized to take all actions necessary to effectuate the intent of this Resolution.
4. This Resolution shall take effect and be in full force immediately after its passage and approval by the governing body of the Corporation II.

ADOPTED this 26th day of May 2026.

LCRA REVITALIZATION CORPORATION II

By: _____

Name: _____

Title: Executive Director

ATTEST:

Assistant Secretary

**RESOLUTION No. 26-LCRARCII-26
PRESENTED TO THE BOARD – MAY 26, 2026**

TO: LCRA REVITALIZATION CORPORATION II BOARD OF DIRECTORS

FROM: DAVID MEYER, ASSOCIATE CITY COUNSELOR

RE: RESOLUTION AUTHORIZING AND APPROVING AN ADMINISTRATION AGREEMENT BY AND BETWEEN ST. LOUIS DEVELOPMENT CORPORATION AND LCRA REVITALIZATION CORPORATION II

EXECUTIVE SUMMARY:

This Resolution authorizes and approves an Administration Agreement by and between St. Louis Development Corporation (SLDC) and LCRA Revitalization Corporation II, in substantially the form attached hereto as **Exhibit A** (the “Agreement”).

BACKGROUND:

SLDC acts as the administrative arm for several development-related authorities, boards, commissions and other entities. Pursuant to the proposed Agreement, SLDC will provide LCRA Revitalization Corporation II with staff, professional services and overhead services. The Agreement is substantially similar to the agreements in place with each of the other SLDC-affiliated authorities, boards, commissions and entities.

The Agreement will be for a period of five (5) years and will automatically renew from year to year on the expiration of each successive renewal term until June 30, 2031.

A draft agreement is attached to this resolution.

REQUESTED ACTION:

Approval of this Resolution No. 26-LCRARCII-26.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF DIRECTORS OF LCRA REVITALIZATION CORPORATION II, THAT:

1. The Administration Agreement by and between SLDC and LCRA Revitalization Corporation II (the “Agreement”) is hereby approved in substantially the form attached hereto, with such changes therein as shall be approved by the officials of LCRA Revitalization Corporation II executing the Agreement.
2. The Executive Director is hereby authorized and directed to execute the Agreement, and to deliver the Agreement to SLDC, for and on behalf of, and as the act and deed of, LCRA Revitalization Corporation II in the manner provided therein. The Executive Director is

hereby authorized and directed to execute such other documents, certificates and instruments as may be necessary or desirable to carry out and comply with the intent of this Resolution. The final form of the Agreement, with such changes as the Executive Director may approve, which are consistent with this Resolution, may be approved by the Executive Director, and his signature, whether manual or facsimile, shall be conclusive evidence of approval by LCRA Revitalization Corporation II.

3. The Executive Director, and/or his designee, and the appropriate officers, agents and employees of SLDC, are hereby authorized to take all actions necessary to effectuate the intent of this Resolution.
4. This Resolution shall take effect and be in full force immediately after its passage and approval by the Board of Directors of LCRA Revitalization Corporation II.

ADOPTED this 26th day of May 2026.

LCRA REVITALIZATION CORPORATION II

By: _____

Title: Executive Director

ATTEST:

Assistant Secretary

EXHIBIT A

ADMINISTRATION AGREEMENT

THIS AGREEMENT, made and entered into effective as of this 1st day of July 2026, by and between ST. LOUIS DEVELOPMENT CORPORATION, a Missouri not-for-profit corporation ("SLDC"), and LCRA REVITALIZATION CORPORATION II, a Missouri not-for-profit corporation (the "CORPORATION");

RECITALS

WHEREAS, the CORPORATION is organized pursuant to Chapter 355 of the Revised Statutes of Missouri ("Chapter 355") for the purpose of furthering the economic development of the City of St. Louis through the promotion, assistance and development of business concerns within the City of St. Louis, Missouri; and

WHEREAS, the CORPORATION, in furtherance of the foregoing purposes, has engaged in certain activities permitted under Chapter 355, including, but not limited to, the acquisition and disposition of real property; and

WHEREAS, the CORPORATION is empowered to make and execute contracts necessary or appropriate for the exercise of its powers and purposes; and

WHEREAS, SLDC is organized pursuant to Chapter 355, Missouri Revised Statutes, for the purposes of advancing the social welfare, health and economic interests of the City of St. Louis, Missouri, and its residents; and

WHEREAS, SLDC is empowered to contract and cooperate with public corporations, political subdivisions or any agency or department thereof in furtherance of its corporate purposes, and in pursuance thereof, shall provide office facilities, staff operating support and professional services to the CORPORATION in accordance with the terms and conditions of this Agreement; and

WHEREAS, the CORPORATION is desirous of securing such staff, operating support, facilities and professional services from SLDC for the operation of activities including the servicing of the CORPORATION's obligations under existing debentures and contracts, the operation of the CORPORATION's facilities and in fostering economic development in the City of St. Louis;

NOW, THEREFORE, for and in consideration of the premises and the mutual covenants hereinafter contained, the parties hereto covenant and agree and follow:

ARTICLE I

AGREEMENT TERM

1.1 Initial Term. This Agreement shall commence upon execution by the parties hereto until the conclusion of the present fiscal year, or until June 30, 2027 (the "Term").

1.2 Renewal Terms. This Agreement shall be automatically renewed from year-to-year for four (4) additional one (1) year terms subject to annual appropriations and funding by the LCRA, commencing on the date of expiration of the Initial Term, and each successive renewal term, and ending not later than June 30, 2031, unless terminated by either party in accordance with Section 1.3 below.

1.3 Termination. This Agreement may be terminated during the Term, without cause, by either party by the provision of ninety (90) days' prior written notice to the other party. Said notice may be waived by the mutual written consent of the parties hereto.

ARTICLE II

SCOPE OF SERVICES

2.1 Staff. SLDC shall provide staff for the administration, operation and implementation of the programs and functions of the CORPORATION. SLDC shall, upon request by the CORPORATION, perform all duties the CORPORATION is responsible for under Chapter 355, including the CORPORATION's responsibilities with respect to all of its assets and liabilities, real property owned or leased by the CORPORATION. SLDC shall have no authority, without the prior written consent of the CORPORATION, to sell or encumber any assets of the CORPORATION or to borrow any funds in the name of the CORPORATION. At the request of the CORPORATION, SLDC shall recommend persons to the CORPORATION to serve as elected officers of the CORPORATION, such as corporate secretary or assistant corporate secretary, consistent with the bylaws of the CORPORATION, without additional compensation to such individuals. All staff shall be employed by SLDC and SLDC shall provide appropriate fringe benefits to the staff.

2.2 Administrative Services. SLDC shall provide managerial, administrative, secretarial, word processing and bookkeeping services to the CORPORATION as required for the regular conduct of the business of the CORPORATION.

2.3 Professional Services. SLDC shall furnish financial management, accounting, legal services and other professional services to the CORPORATION.

2.4 Fund Management Services. Except as otherwise provided in Section 2.6 below, the CORPORATION shall deposit all of its existing funds and future receipts with SLDC. SLDC shall provide financial and accounting services to the CORPORATION and shall disburse and manage, on a segregated basis in the name of the CORPORATION, all funds of the CORPORATION, including existing funds and future receipts. The CORPORATION hereby appoints SLDC as the sole agent with respect to the existing funds and future receipts of the CORPORATION. Such agency is coupled with an interest and shall be irrevocable except upon termination of this Agreement pursuant to Section 1.2 above. The following provisions regarding management of the said existing funds and future receipts of the CORPORATION shall govern:

(a) all the CORPORATION funds shall be physically segregated, to account for the revenues and expenditures of the CORPORATION;

(b) SLDC shall maintain special funds, debt service reserves and other special funds as required by the CORPORATION;

(c) monthly financial statements for the CORPORATION shall be provided, together with an annual audit thereof;

(d) disbursements shall be made upon dual signatures based upon proper documentation and approval by the Executive Director of SLDC or his/her designee and the Controller of SLDC or his/her designee (unless otherwise provided in contracts of the CORPORATION), and in accordance with an annual budget presented for approval to the CORPORATION Board thirty (30) days prior to the start of each fiscal year;

(e) cash balances and reserve funds shall be invested daily in obligations of the State of

Missouri or of the United States or any agency thereof, or in bank certificates of deposit collateralized by the United States or United States agency obligations;

(f) all unexpended revenues in the said account of the CORPORATION or of the CORPORATION's contractors, less any outstanding obligations, shall be returned to the CORPORATION upon termination of the Agreement between SLDC and the CORPORATION; provided, however, that any revenues constituting "Program Income" as defined in 24 CFR Section 570.504 shall be handled in accordance with the Agreement between St. Louis Community Development Administration ("CDA") and the CORPORATION, or CDA and SLDC as applicable, and provided further that any revenues subject to restriction under outstanding contracts of the CORPORATION and any other Restricted Funds, as defined in Section 2.8 below, shall be disposed of in accordance with such restrictions.

(g) SLDC shall not expend or commit funds of the CORPORATION (other than for those purposes provided in the budget attached hereto as Exhibit "A") without the prior written consent of the CORPORATION.

2.5 Reports. SLDC shall present financial reports to the CORPORATION on a monthly basis. Other reports needed for the CORPORATION's decision-making processing or as required by law shall be presented by SLDC to the CORPORATION in a timely manner. In addition, SLDC shall report monthly to the CORPORATION on marketing and other activities of SLDC. SLDC shall prepare an annual report to the CORPORATION.

2.6 Community Development Funds. If and to the extent the CORPORATION is or, in connection with prospective programs during the term of this Agreement, shall be an applicant for funding administered by CDA, SLDC shall prepare and process such applications and accept financial responsibility for such programs in SLDC's name and shall report to the CORPORATION regarding said funds in accordance with Sections 2.4 and 2.5 above.

2.7 Office Facilities. SLDC shall provide offices and record storage to the CORPORATION. The CORPORATION shall make available to SLDC all of the CORPORATION files and records, present furnishings, file cabinets and equipment. SLDC shall return all such CORPORATION files, records, furnishings, file cabinets and equipment upon termination of this Agreement, provided SLDC, acting in its sole discretion, shall have the right to dispose of any furnishings, file cabinets and equipment it deems obsolete, worn or unneeded at any time during the term of this Agreement and provided that SLDC may retain copies of any CORPORATION file or record. SLDC may, upon notice to the CORPORATION, dispose of any files and records of the CORPORATION delivered to SLDC under this Agreement; provided, however, any such disposition shall be consistent with any record retention requirements applicable to the CORPORATION imposed by federal, state or local laws, regulation, ordinance or order or any contract of the CORPORATION.

ARTICLE III

COMPENSATION

3.1 Consideration. The consideration supporting this Agreement shall be the mutual obligations contained herein and shall not include monetary consideration, except as otherwise provided herein.

3.2 Fees. In consideration for the services provided in accordance with Article II hereof during the Initial Term, the CORPORATION shall pay in good funds to SLDC a fee as mutually determined by the parties. Said fee shall, at a minimum, be sufficient to cover the costs incurred by SLDC during the Initial Term under this Agreement for the provision of services to the CORPORATION in accordance with Article II hereof. The fee due SLDC shall be determined annually by the mutual written consent of the parties hereto, ninety

(90) days prior to the expiration of each renewal term. Such sum shall be paid in equal monthly installments due on the first day of each month, or at such other times and dates as the parties may agree.

3.3 Consent. The CORPORATION agrees not to expend or commit any of its funds during the term of this Agreement (other than for those purposes provided in the budget attached hereto as Exhibit "A") without prior notice to SLDC in order to ensure that SLDC can provide appropriate staff to implement the expenditure or commitment of funds and that the costs of such staff is covered. SLDC also agrees not to expend or commit funds of the CORPORATION (other than for those purposes provided in the budget attached hereto as Exhibit "A") without the prior written consent of the CORPORATION. Provided, however, nothing herein contained shall be construed as a delegation by the CORPORATION of its authority with respect to matters directly related to decisions pertaining to the issuance of debentures.

ARTICLE IV

INDEMNIFICATION

4.1 Indemnification. SLDC agrees to indemnify and hold the CORPORATION and its officers and directors harmless from any and all loss, damage, liability, claim, demand, cause of action and expense (including reasonable attorneys' fees) relating to any actual or alleged injury to or death of any person, any actual or alleged loss or damage to property, or any other actual or alleged loss or damage suffered by any third party arising from any acts of SLDC or its employees or the Board of Directors or officers of the CORPORATION to the extent such loss, damage, liability or expense exceeds the limits of any liability insurance; provided, however, nothing contained herein shall require SLDC to indemnify the CORPORATION, its officers and directors for any claim or liability resulting from the wrongful, willful or intentional acts of the CORPORATION, its officers and directors.

4.2 Insurance. SLDC shall maintain hazard and general liability insurance for the CORPORATION operations, or adequate self-insurance with the City of St. Louis Public Facilities Protection Corporation, for the CORPORATION's operations with the CORPORATION and each of its officers and directors, in such form and amount agreed upon by SLDC and the CORPORATION.

ARTICLE V

MISCELLANEOUS PROVISIONS

5.1 Default. If either party fails to perform any of its obligations hereunder (the "defaulting party"), the other party may, after ten (10) days' written notice and demand, perform or cause to be performed, the defaulting party's obligations hereunder and charge the reasonable cost to the same.

5.2 Modifications. All modifications to this Agreement shall be in writing and signed by the parties hereto.

5.3 Assignment. Neither party's rights nor obligations hereunder shall be assigned without the prior written consent of the other party.

5.4 Non-Discrimination. In accordance with applicable federal, state and local laws, regulations, ordinances and orders, SLDC shall not discriminate against employees or applicants for employment on the basis of race, creed, color, sex, sexual orientation, national origin, or physical disability. The CORPORATION may terminate this Agreement in the event SLDC is found liable for committing an act of discrimination by a court of competent jurisdiction.

5.5 Waivers. The waiver, by either party, of any breach under this Agreement shall in no way constitute a waiver of any subsequent breach of any term or condition hereof.

5.6 Notices. All notices and communications hereunder shall be in writing and shall be deemed given, made or communicated if either delivered in person or sent by first class United States certified mail and addressed to:

If to SLDC: St. Louis Development Corporation
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Executive Director

If to CORPORATION: LCRA Revitalization Corporation II
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
With a copy to Chairman (at his/her personal address).

5.7 Non-Exclusive Agreement. The parties hereto agree and understand that this Agreement shall be non-exclusive, and that SLDC intends to contract on a similar basis with other entities, including, but not limited to: the Planned Industrial Expansion Authority of the City of St. Louis, the City of St. Louis Port Authority, the Land Reutilization Authority of the City of St. Louis, Land Clearance for Redevelopment Authority of the City of St. Louis, and the Industrial Development Authority of the City of St. Louis.

5.8 Access to Books and Records. The fiscal and programmatic records of SLDC shall be available upon request of CDA and the CORPORATION. Books and records shall be retained for a minimum of five (5) years and in accordance with the Housing and Urban Development Community Block Grant regulations, applicable Small Business Administration regulations, and Missouri Revised Statutes.

5.9 Independent Contractors; No Alter Ego. Except as specifically provided in Section 2.4 above, nothing contained in this Agreement is intended to nor shall be construed to create any partnership, joint venture, alter ego, or other relation of or between the parties, except that of independent contracting entities. SLDC and CORPORATION mutually agree that each shall be considered for all intents and purposes to be the independent contractor of the other, and neither shall be considered, nor shall the officers, employees or agents of each be considered to be the employees or agents of the other, except as (i) agents and independent contractors for the limited purpose of performing acts as authorized or required under this Agreement, and (ii) certain officers and employees of SLDC may be duly elected as officers of the CORPORATION.

5.10 Statutory Powers. All the powers of the CORPORATION shall be and remain vested in its board of directors pursuant to Chapter 355, Missouri Revised Statutes, and the CORPORATION shall retain and may exercise all powers necessary or appropriate to carry out and effectuate its purposes under Chapter 355 et seq., Missouri Revised Statutes.

5.11 Opinions of Counsel. Prior to execution of this Agreement, the CORPORATION agrees to provide opinions of counsel that:

(a) the CORPORATION is a duly organized and validly existing under Chapter 355, Missouri Revised Statutes; has all requisite power and authority to execute, deliver and perform this Agreement; and the CORPORATION has taken all necessary action to authorize it to enter into and perform this Agreement;

(b) this Agreement has been duly authorized, executed and delivered by the CORPORATION and constitutes the legal, valid and binding obligation of the CORPORATION,

enforceable in accordance with its terms.

(c) the execution, delivery and performance of this Agreement by the CORPORATION will not violate, conflict with or result in a breach or default under any of the terms or provisions of any indenture, mortgage, deed of trust, loan agreement or other agreement or Instrument [for money borrowed] to which the CORPORATION is a party or by which the CORPORATION is bound or to which any of the property or assets of the CORPORATION is subject, nor will such action result in any violation of the provisions of the bylaws, rules or regulations of the CORPORATION, or any statute or any order, judgment, decree, rule or regulation of any court or governmental agency or body having jurisdiction over the CORPORATION or any of its properties or assets; and

(d) no consent, approval, authorization or other action by, and no notice to or filing with, any governmental authority or regulatory body is required for the due execution, delivery and performance by the CORPORATION of this Agreement.

5.12 Invalid Provisions. In the event any covenant, condition or provision herein contained is held to be invalid by a court of competent jurisdiction, the invalidity of any such covenant, condition or provision shall in no way affect any other covenant, condition or provision herein contained, provided the invalidity of any such covenant, condition or provision does not materially prejudice either SLDC or the CORPORATION in its respective rights and obligations contained in the valid covenants, conditions and provisions of this Agreement.

5.13 Entire Agreement. This Agreement contains the entire agreement of the parties hereto and supersedes all prior agreements, representations and understandings, whether written or otherwise, between the parties relating to the subject matter hereof.

5.14 Additional Documents. The CORPORATION agrees to deliver to SLDC such other and further agreements, consents, documents or instruments of conveyance, assignment or transfer and to do such other things and to take such other actions, supplemental or confirmatory, as may be required by SLDC for the purpose of or in connection with the consummation or evidencing of the contractual relationship contemplated hereunder.

5.15 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Missouri and the City of St. Louis.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the parties hereto have executed this instrument as of the day and year first above written.

ST. LOUIS DEVELOPMENT CORPORATION

(SEAL)

By: _____
Executive Director

ATTEST:

LCRA REVITALIZATION CORPORATION II

(SEAL)

By: _____
Chairman

ATTEST:
